

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Janine Zajac	Team: Team # 1	CCRB Case #: 201108063	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 06/20/2011 5:25 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/20/2012	Precinct: 44
Date/Time CV Reported Tue, 06/21/2011 1:42 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 06/21/2011 1:42 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alexis Dejesus	01421	946903	044 PCT
2. POM Amaury Gonzalez	25722	948213	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Alexis Dejesus	Abuse: PO Alexis Dejesus questioned § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . POM Amaury Gonzalez	Abuse: PO Amaury Gonzalez questioned § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . POM Alexis Dejesus	Abuse: PO Alexis Dejesus frisked § 87(2)(b)	C . Substantiated
D . POM Alexis Dejesus	Abuse: PO Alexis Dejesus frisked § 87(2)(b)	D . Alleged Victim Unavailable
E . POM Amaury Gonzalez	Abuse: PO Amaury Gonzalez frisked § 87(2)(b) and § 87(2)(b)	E . Substantiated
§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]		

Case Summary

On June 21, 2011, § 87(2)(b) filed a complaint with the CCRB on behalf of her § 87(2)(b) daughter, § 87(2)(b) by leaving a message on the Call Processing System (encl. 4a-c). § 87(2)(b) did not witness the incident.

On June 20, 2011, at approximately 5:25 p.m., PO Alexis Dejesus of the 44th Precinct and PO Amaury Gonzalez of Patrol Borough Bronx approached § 87(2)(b) and § 87(2)(b) in the courtyard of the § 87(2)(b) apartment complex, located at § 87(2)(b) in the Bronx and the following allegations resulted.

- **Allegation A – Abuse of Authority:** PO Alexis Dejesus questioned § 87(2)(b) and § 87(2)(b)
- **Allegation B – Abuse of Authority:** PO Amaury Gonzalez questioned § 87(2)(b) and § 87(2)(b) § 87(2)(g) § 87(2)(g), it is recommended that **Allegations A and B be Unsubstantiated.**
- **Allegation C – Abuse of Authority:** PO Alexis Dejesus frisked § 87(2)(b) § 87(2)(g) it is recommended that **Allegation C be Substantiated.**
- **Allegation D – Abuse of Authority:** PO Alexis Dejesus frisked § 87(2)(b) § 87(2)(g) it is recommended that **Allegation D be closed as Victim Unavailable.**
- **Allegation E – Abuse of Authority:** PO Amaury Gonzalez frisked § 87(2)(b) and § 87(2)(b) § 87(2)(g) it is recommended that **Allegation E be Substantiated.**
- § 87(2)(g), § 87(4-b)

Results of Investigation

Civilian Statements

Victim: § 87(2)(b)

- § 87(2)(b) *Hispanic female, § 87(2)(b), with black hair and brown eyes.* § 87(2)(b)

§ 87(2)(b) provided a brief phone statement on June 23, 2011 (encl. 5aa), which was consistent with her in-person CCRB interview on June 28, 2011 (encl. 5a-g).

On June 20, 2011, at approximately 3:30 p.m., § 87(2)(b) was sitting on a bench inside of the central courtyard of the § 87(2)(b) where she lives. § 87(2)(b) was wearing brown cargo pants and she had her phone in her front right pants pocket and her keys were in her front left pocket. She did not have anything else in her pockets and had nothing in the cargo pockets. She sat by herself and listened to music for approximately one hour, at which point her boyfriend, whose name she provided as § 87(2)(b) joined her. The investigation determined that § 87(2)(b) actual name is § 87(2)(b) § 87(2)(b) cousins also arrived at this time. § 87(2)(b) gave their names as

§ 87(2) and § 87(2)(b) last names unknown, but they have been identified through investigation as § 87(2)(b) and § 87(2)(b)

The three males, who are all § 87(2)(b) all arrived together and had come from § 87(2)(b) house on § 87(2)(b) in the Bronx, the address of which § 87(2)(b) did not know. § 87(2)(b) was wearing loose-fitting swimming trunks that went past his knees. § 87(2)(b) could not recall what color his shorts were or what else he was wearing. § 87(2)(b) could not recall what § 87(2)(b) or § 87(2)(b) were wearing. § 87(2)(b) estimated that they all sat together on benches and talked for approximately forty-five minutes or an hour. Two uniformed officers, identified through investigation as PO Amaury Gonzalez and PO Alexis Dejesus, walked into the courtyard, stood in the middle of it and looked around, and then left. At this point, the officers did not approach anyone in the courtyard to speak to anyone.

Ten minutes later at approximately 5:25 p.m., the same two officers returned to the courtyard and immediately approached § 87(2)(b) and her friends. § 87(2)(b) and § 87(2)(b) were sitting on one bench, while § 87(2)(b) and § 87(2)(b) were sitting on another nearby bench. PO Dejesus approached the bench where § 87(2)(b) and § 87(2)(b) sat. § 87(2)(b) described PO Dejesus as shorter than PO Gonzalez and with darker skin, in his late 20s or early 30s, with brown eyes and dark brown hair. PO Gonzalez faced the bench where § 87(2)(b) and § 87(2)(b) sat. PO Dejesus told § 87(2)(b) to stand up, and PO Gonzalez told § 87(2)(b) and § 87(2)(b) to stand up. The officers did not initially tell § 87(2)(b) to stand up. The officers had the males stand approximately ten or fifteen feet from § 87(2)(b). The officers patted § 87(2)(b) and § 87(2)(b)'s pants pockets repeatedly, and went to each male three separate times. PO Dejesus and PO Gonzalez each interacted with all of the males and laughed with them as they patted their pockets. § 87(2)(b) could not hear their conversation or what they were laughing about. PO Dejesus patted around the front and back of § 87(2)(b) waist and down his thighs. One of the males whom § 87(2)(b) referred to as "§ 87(2)(b)" had a scarf around his neck, and at some point during their interaction, PO Dejesus shook the scarf out and loosened it. The officers performed similar frisks on all of the males and did not reach into their pockets or frisk above their waists other than when PO Dejesus shook § 87(2)(b) scarf. This portion of the incident lasted approximately five minutes.

PO Dejesus then instructed § 87(2)(b) to get up from the bench where she was sitting and she complied. PO Dejesus moved toward § 87(2)(b) and reached to pat her leg. PO Dejesus did not ask § 87(2)(b) any questions. § 87(2)(b) backed away from PO Dejesus and told him that he could not touch her. She backed into a curb and could not back up any further. § 87(2)(b) told PO Dejesus that she did not mind being searched but he needed to get a female officer. PO Dejesus said, "Shut up, and don't tell me what to do." PO Dejesus then patted § 87(2)(b) front pants pockets, as well as cargo pockets on the sides of her pants legs, which were empty. PO Dejesus did not say anything while he patted § 87(2)(b) pockets. § 87(2)(b) was not paying attention to what was happening with PO Gonzalez and the males at this point. § 87(2)(b) did not see either officer look around the benches for anything. § 87(2)(b) sat down after PO Dejesus patted her pockets. § 87(2)(b) did not have any interaction with PO Gonzalez at any point during the incident.

PO Dejesus asked § 87(2)(b) for her identification, but she did not have it with her. PO Dejesus asked § 87(2)(b) for her name, address, and date of birth and saw him write it down on a loose piece of paper. § 87(2)(b) brother, § 87(2)(b) § 87(2)(b) was walking his dog with his best friend, § 87(2)(b) and passed by while PO Dejesus was requesting § 87(2)(b) identification. § 87(2)(b) approached and § 87(2)(b) told him to go upstairs and get her identification. § 87(2)(b) asked the officers what had happened, and PO Dejesus said, "Mind your business." § 87(2)(b) offered to show his own identification to the officers, and then asked § 87(2)(b) to go get the identification while he waited with § 87(2)(b) and called their step-mother. § 87(2)(b) and § 87(2)(b) did not get involved further and the officers did not ask them any questions or ask for their identification. § 87(2)(b) did not hear either officer ask for

the identifications or information for § 87(2)(b) or § 87(2)(b) and she did not see either officer write anything down while interacting with the males. During her CCRB interview, § 87(2)(b) showed a photo of the officers on her phone, which her brother took during the incident.

§ 87(2)(b) step-mother, § 87(2)(b) came outside and told PO Dejesus that he was not supposed to touch § 87(2)(b) § 87(2)(b) did not witness any physical contact between the officers and § 87(2)(b) and the individuals she was with. PO Dejesus said, “Don’t tell me how to do my job.” One of the officers said that they had received a report that their group had been smoking marijuana. No one in the group was smoking marijuana or anything else, and § 87(2)(b) had not noticed anyone else in the courtyard smoking marijuana or cigarettes. § 87(2)(b) told the officers that if § 87(2)(b) had been smoking marijuana she would have red eyes. The officers did not respond to this. The officers stood there for approximately ten minutes and then left the complex. § 87(2)(b) did not hear either officer use their radios or make any calls, and no additional officers arrived on the scene. The officers left before § 87(2)(b) could return with § 87(2)(b) identification.

Once § 87(2)(b) mother, § 87(2)(b) got home from work, they went to the 44th Precinct stationhouse along with § 87(2)(b) to file a complaint. They arrived at approximately 7:50 p.m. and spoke with an unidentified Hispanic male officer in uniform in his late 20s, 5’9”, with an average build, and dark hair in a Caesar cut and a goatee. This officer, who remains unidentified, was not seated behind the desk but was standing with a group of officers and he came up to § 87(2)(b) and § 87(2)(b) to speak with them. § 87(2)(b) asked him if they could make a complaint, and he said there was a number to call but that he could not take a complaint in the stationhouse. He wrote down a phone number and gave it to § 87(2)(b) and they left the stationhouse. This number did not work, but § 87(2)(b) had written down an additional number for the CCRB from the stationhouse wall. § 87(2)(b) stated off the record that she was not interested in pursuing a complaint about not being able to file her complaint at the stationhouse, as she was able to file her complaint.

Attempts to Contact Civilians

By the time § 87(2)(b) appeared at the CCRB, she and § 87(2)(b) had broken up and she no longer had his contact information. § 87(2)(b) provided his name as “§ 87(2)(b)” and a Lexis Nexis search was done for that name on July 7, 2011, and one address on § 87(2)(b) in the Bronx was produced. Letters were sent to this address on July 7, 2011 and July 14, 2011, one of which was returned by the USPS as “not deliverable as addressed.” When a copy of the handwritten Stop, Question, and Frisk index was received, it revealed reports for § 87(2)(b) and an individual named § 87(2)(b). A Lexis Nexis search for § 87(2)(b) was done on August 8, 2011, and it produced an address and phone number in Brooklyn. The phone number was called on August 10, 2011, but it was a wrong number. A letter was sent to the Brooklyn address on August 10, 2011, and it was returned by the USPS on August 19, 2011 with a notice that said, “No such number, unable to forward.”

The handwritten Stop, Question and Frisk Report showed § 87(2)(b) address as § 87(2)(b) in the Bronx. A Lexis Nexis search for § 87(2)(b) produced no name matches for him at this address, a building which has over 70 units. A letter was sent to him at that address on September 2, 2011, which was subsequently returned by the USPS on September 13, 2011 as “not deliverable as addressed”.

The handwritten Stop, Question, and Frisk Index for the date of the incident (encl. 11a-e) revealed reports for § 87(2)(b) and § 87(2)(b) but no additional reports for the incident. PO Gonzalez wrote on a fly sheet in his memo book the names of the four individuals stopped during this incident, including § 87(2)(b) and § 87(2)(b) and also § 87(2)(b) and § 87(2)(b) with addresses included for them. PO Gonzalez wrote § 87(2)(b) address as § 87(2)(b) (no apartment number listed) in the Bronx. A Lexis Nexis search

for § 87(2)(b) produced two addresses on § 87(2)(b) in the Bronx, including one at § 87(2)(b), and one possible phone number. Letters were sent to both addresses on March 16, 2012 and March 29, 2012. The phone number was a wrong number. PO Gonzalez wrote § 87(2)(b)'s address as § 87(2)(b) in the Bronx. A Lexis Nexis search found one additional possible apartment number at § 87(2)(b). The search also produced a possible phone number. Letters were sent to both addresses on March 16, 2012, and March 29, 2012. The phone number was a wrong number. No letters to § 87(2)(b) or § 87(2)(b) were returned by the USPS.

NYPD Statements:

Subject Officer: PO ALEXIS DEJESUS

- § 87(2)(b)-year-old Hispanic male, § 87(2)(b), with brown hair and brown eyes.
- On the date of the incident he worked an overtime patrol assignment from 1:00 p.m. until 9:35 p.m. with PO Gonzalez. He was dressed in uniform and he was assigned to a marked car.

Memo Book

PO Dejesus had the following entries in his memo book pertaining to this incident (encl. 8a-b). At 5:25 p.m. he had four males stopped for suspected criminal possession of a weapon, and he prepared Stop, Question, and Frisk reports for § 87(2)(b) and § 87(2)(b). He noted that § 87(2)(b) was agitated.

Stop, Question, and Frisk Reports

PO Dejesus completed two handwritten Stop, Question, and Frisk reports for this incident (encl. 9a-b). The reports he completed for § 87(2)(b) and § 87(2)(b) both note that the stop lasted for approximately three minutes, and the suspected offense listed on both reports is criminal possession of a weapon. On § 87(2)(b) report in the circumstances leading to the stop he noted “furtive movements,” and “suspicious bulge.” “Keys in side pocket” is handwritten next to the “suspicious bulge” box. The report for § 87(2)(b) notes that she was frisked, and PO Dejesus listed, “furtive movements,” “actions indicative of engaging in violent crimes,” “refusal to comply with officer’s direction(s),” and “suspicious bulge/object” as circumstances that led to the frisk, with “bulge in pants, left cargo pocket (side)” handwritten next to “suspicious bulge/object.” The report indicates § 87(2)(b) was not searched. Her demeanor was agitated and she said, “I am a female, you cannot touch me ever.” In the additional circumstances/factors section, PO Dejesus marked, “Area has high incident of reported offense of type under investigation,” “Time of day, day of week, season corresponding to reports of criminal activity,” “Evasive, false, or inconsistent responses to officer’s questions,” and “Changing direction at sight of officer/flight.” He did not mark the box for, “Report from victim/witness.”

In the circumstances that led to the stop section of § 87(2)(b) report, PO Dejesus noted “furtive movements” and “suspicious bulge/object,” and “cell phone in pockets” is handwritten next to “suspicious bulge/object.” He noted that § 87(2)(b) was frisked, with “furtive movements” and “suspicious bulge/object” in the frisk basis section. The report notes that § 87(2)(b) was not searched and his demeanor was calm. In section for additional circumstances/factors, PO Dejesus marked, “Time of day, day of week, season corresponding to reports of criminal activity,” “Evasive, false, or inconsistent responses to officer’s questions,” and “Changing direction at sight of officer/flight.” He did not mark the box for, “Report from victim/witness.”

CCRB Testimony

PO Dejesus was interviewed at the CCRB on November 4, 2011 (encl. 10a-c). On June 20,

2011 at approximately 5:25 p.m., PO Dejesus and PO Gonzalez intended to conduct a routine vertical patrol at the apartment complex which contains § 87(2)(b), known by the investigation to be the § 87(2)(b) complex. This complex consists of approximately three buildings that surround a courtyard in the middle. PO Dejesus and PO Gonzalez intended to check the courtyard first. A man, who had exited one of the buildings, approached the officers near the front gate entrance to the complex inside of the courtyard. This man told the officers that the four people in front of them were “up to no good,” and said that those four people use drugs there frequently. In the courtyard at this time was the group of four people ahead of the officers, and then small children. This man also said that he smelled drugs, and it looked like they had exchanged something. He did not single out any particular members of the group and referred to them only as a group. PO Dejesus did not take down his information. The officers spoke to this man for less than a minute, and the interaction was quick, as it seemed like this man did not want to stop and was trying to be inconspicuous while talking to the officers.

The officers approached the group. PO Dejesus did not see anyone smoking, but noted that there were bushes directly behind the benches, so it would be easy for the four individuals to throw anything they had been smoking. PO Dejesus said something to PO Gonzalez about moving quickly as they got closer to the group. He said this so that the officers could handle the situation quickly before anyone had time to run into one of the apartment buildings. As the officers approached the group, § 87(2)(b) reached into his swimming trunks so that his hand was no longer visible. PO Dejesus was unable to fully see § 87(2)(b) and § 87(2)(b) hands, because they were sitting sideways on the bench at an angle so they were facing one another. § 87(2)(b) body was angled so that the left side of her body was concealed from PO Dejesus’ view. PO Dejesus noted that all four of the individuals moved their hands and fidgeted once they saw the officers approaching, but § 87(2)(b) and § 87(2)(b) were seated close to one another and PO Dejesus focused on them. These factors made it look like they were concealing something. When PO Dejesus viewed a copy of the handwritten Stop, Question, and Frisk Reports he completed, he said these movements were the “furtive movements” he was referring to on the report. PO Dejesus spoke to § 87(2)(b) and § 87(2)(b) and asked to see their hands immediately.

The first thing PO Dejesus said was, “Let me see your hands.” § 87(2)(b) left her hands where they were – one was near her leg at her left side and one was between her legs, positioned so that PO Dejesus could not see her fingers. When he got within a couple feet of the group, PO Dejesus smelled marijuana, and so he asked § 87(2)(b) and § 87(2)(b) to stand up. A few seconds passed between when PO Dejesus said, “Let me see your hands” and when he asked them to stand up. § 87(2)(b) stood up, but § 87(2)(b) did not. PO Dejesus then focused his attention on § 87(2)(b) and asked her three times to stand up. She complied after he asked the third time.

§ 87(2)(b) was wearing cargo pants, and when she stood up PO Dejesus saw a big bulge in the left cargo pocket, located by her knee, and he asked her what was in the pocket. The pocket was five or six inches, the bulge was three or four inches long and rectangular or box-shaped. PO Dejesus thought it could have been a knife or possibly some other kind of weapon. PO Dejesus then said that the item was soft. His representative said, “But initially you thought it might have been a knife.” PO Dejesus responded, “Yeah, that’s what I thought it was.” PO Dejesus noted that § 87(2)(b) was heavy-set, and her pants were tight. § 87(2)(b) said, “It’s none of your business. I’m a female, you can’t touch me. Don’t worry about what’s in my pocket.” PO Dejesus had not previously realized § 87(2)(b) was a female. PO Dejesus asked § 87(2)(b) if she had any weapons, and § 87(2)(b) repeated, “I’m a female, you can’t touch me. It doesn’t matter what I have.” PO Dejesus said, “I need to know what you have in your pocket.” PO Dejesus asked § 87(2)(b) a total of three times what was in her pocket. PO Dejesus noted that anytime someone does not show their hands when asked, this raises his suspicion that they are concealing something, as did the fact that § 87(2)(b) did not tell PO Dejesus what the item was.

PO Dejesus reached for § 87(2)(b) left cargo pocket and § 87(2)(b) yelled out for her mother and swatted PO Dejesus' hands away. § 87(2)(b) yelled things like, "You're not supposed to touch me, I'm a female. Get my mother, I want her to see this." PO Dejesus reached to § 87(2)(b) left cargo pocket and felt it. He felt that the object in the pocket was soft, which made him realize it was not a weapon but he did not ever find out what the item was. He did not take the item out of her pocket or press the issue because he knew it was not a weapon. PO Dejesus did not make physical contact with any other portion of § 87(2)(b) body, and the left cargo pocket was the only pocket that visibly contained anything. PO Dejesus explained to § 87(2)(b) why they stopped the group. PO Dejesus explained to § 87(2)(b) the Stop, Question, and Frisk Report procedure and asked for her name. § 87(2)(b) continued to say that he was not supposed to touch her because she is a female, but she provided her identification.

PO Dejesus spoke to § 87(2)(b) at some point, but he could not recall what the substance of their conversation was or if he spoke to him or § 87(2)(b) first. PO Dejesus could not recall if he made physical contact with § 87(2)(b) but said that the Stop, Question, and Frisk Report he completed would reflect if he did, because he completed it when the incident was fresh in his mind. PO Dejesus viewed the report he completed for § 87(2)(b) and confirmed that the report shows that he frisked him, and the item he felt was a cell phone. PO Dejesus then remembered that § 87(2)(b) was slightly agitated when the officers first approached, and he had a square bulge of an unknown size in one of the pockets of the swimming trunks he was wearing. PO Dejesus could not recall which pocket the bulge was in. PO Dejesus was unable to discern that the bulge was a cell phone when he saw it, but knew upon touching it that it was a cell phone. PO Dejesus did not make contact with any other part of § 87(2)(b) body.

PO Dejesus viewed the handwritten Stop, Question, and Frisk Report he completed for § 87(2)(b). He noted on the report that the item he felt in her pocket was keys. He clarified that the keys were the recognizable item he felt in the pocket, but it was not the keys that drew his attention. He wrote "keys" because he did not ever find out what that rectangular item was, and he cannot just write "object" on the report. There was more than the rectangular soft item in the pocket, such as the keys, but it was the rectangular bulge that he first noticed.

While PO Dejesus was interacting with § 87(2)(b) PO Gonzalez was behind him. PO Dejesus did not interact with the two other individuals with whom PO Gonzalez was interacting. After § 87(2)(b) calmed down and the officers wrote down everyone's information, the officers quickly looked near the bushes but did not find any drugs in the area. § 87(2)(b) mother was on the other side of the courtyard, and everything was finished by the time her mother came over. Once § 87(2)(b) mother arrived, § 87(2)(b) calmed down. § 87(2)(b) mother requested PO Dejesus' name and shield number, and he provided this information to her. The officers then left.

Subject Officer: PO AMAURY GONZALEZ

- § 87(2)(b) -year-old Hispanic male, § 87(2)(b) brown hair and brown eyes.
- On the date of the incident he worked an impact overtime assignment from 1:00 p.m. until 9:35 p.m. with PO Dejesus. He was dressed in uniform and he was assigned to a marked van.

Memo Book

PO Gonzalez did not bring his memo book to his CCRB interview. He had the following entries in his memo book pertaining to this incident (encl. 6a-d). At 5:25 p.m. he had three males and one female stopped inside of § 87(2)(b) for suspicion of criminal possession of marijuana. He went back on patrol at 6:00 p.m. On a fly sheet of his memo book PO Gonzalez wrote the names of § 87(2)(b) and § 87(2)(b).

CCRB Testimony

PO Gonzalez was interviewed at the CCRB on October 25, 2011 (encl. 7a-b). § 87(2)(f), § 87(2)(g)

§ 87(2)(g) . The apartment complex at § 87(2)(b) participates in the Clean Halls program. The tenant who was exiting told the officers that the group of young men sitting on the benches were smoking marijuana, and he pointed out the group that he was referring to. This group was sitting on benches inside of the courtyard, approximately fifteen to twenty feet from the gate. This tenant also specified that he saw the person in the group wearing cargo pants put marijuana in their pocket. Only one person in the group was wearing cargo pants. The tenant did not specify which pocket the marijuana was in, and PO Gonzalez did not ask. PO Gonzalez did not obtain this tenant's name, and he did not know if PO Dejesus did. They did not interact with or see this tenant again.

When he looked at the group, PO Gonzalez saw one of the males smoking something, which he realized was a cigar when they got closer. This person who was smoking was standing up, and the other three people were sitting down. Based on the information supplied by the tenant they spoke with, PO Gonzalez and PO Dejesus approached this group and asked them to stand up. PO Gonzalez did not smell marijuana, and when asked if upon approaching the group anything suggested to him that they were smoking marijuana or if they were under the influence of drugs, PO Gonzalez said he was not focusing on determining that at the time.

After the males stood up, PO Dejesus and PO Gonzalez explained to them that someone had reported that they were smoking marijuana, and asked if they lived in the building. PO Gonzalez focused on two males from the group, whose names he recorded on his fly sheet. PO Gonzalez did not have his memo book at the time of his CCRB interview, but when he sent his fly sheet to the undersigned investigator, these names were revealed to be § 87(2)(b) and § 87(2)(b). One of them was wearing a t-shirt, and the other was wearing a Polo-style shirt. PO Gonzalez frisked both of these individuals to make sure they did not have any weapons and to ensure that they would not cause any harm to the officers. He frisked the front and backs of their waists, legs, and ankles. He did not frisk their upper bodies. PO Gonzalez noted that they were wearing baggy jeans, which could have concealed weapons. Nothing else led him to believe that they had weapons on their persons. PO Gonzalez asked for their identifications, but only one of them had one. The other person gave his information verbally.

While PO Gonzalez was interacting with these two males, PO Dejesus approached the person wearing the cargo pants, known by the investigation to be § 87(2)(b). PO Gonzalez did not realize § 87(2)(b) was a female until she said she was a female and complained about being touched by a male officer. PO Dejesus was approximately two feet away from PO Gonzalez, and they were positioned next to one another. PO Gonzalez did not believe that PO Dejesus made physical contact with § 87(2)(b). PO Gonzalez saw that § 87(2)(b) cargo pants were "away from her body." § 87(2)(b) asked both officers for their shield numbers and names, and the officers provided this information. PO Gonzalez did not remember if she wrote their information down or if she noted it in some other way. § 87(2)(b) was the only person in the group who said anything to the officers. After the officers' interactions with the group were complete, the officers looked in the area surrounding the group but did not find any evidence of marijuana. PO Gonzalez believed that he eventually completed two Stop, Question, and Frisk Reports for the two people he frisked, and that PO Dejesus completed the other two reports for the individuals he interacted with.

NYPD Documents

Stop, Question, and Frisk Index

The digital and handwritten Stop, Question, and Frisk Indexes list the reports completed for stops conducted on June 20, 2011 in the hours surrounding this incident (encl. 11a-e). The reports completed by PO Dejesus for his interactions with § 87(2)(b) and § 87(2)(b) are listed on the indexes. The index does not reveal any reports created by PO Gonzalez for this incident.

Status of Civil Proceedings

- A Notice of Claim has not been filed with the City of New York as of June 20, 2012 with regard to this incident (encl. 14o).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint involving § 87(2)(b) and § 87(2)(b) (encl. 3a-d).

Subject Officers CCRB History

- PO Dejesus has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 2a).
- PO Gonzalez has been a member of the service for three years and there are no substantiated CCRB allegations against him. (encl. 2b).

Conclusion

Identification of Subject Officers

PO Gonzalez and PO Dejesus admitted to interacting with § 87(2)(b) and § 87(2)(b) on the date of the incident. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Alexis Dejesus questioned § 87(2)(b) and § 87(2)(b)

Allegation B – Abuse of Authority: PO Amaury Gonzalez questioned § 87(2)(b) and § 87(2)(b)

It is not disputed that PO Dejesus and PO Gonzalez approached § 87(2)(b) and § 87(2)(b) inside the courtyard of the § 87(2)(b) apartment complex on the date of the incident.

PO Dejesus and PO Gonzalez stated they were approached by a man, whose name and contact information the officers did not record, in the courtyard of the complex as they were on their way to enter one of the buildings in the course of their patrol. This man pointed to the victims named in this complaint as they were seated on benches in a courtyard of the complex. According to PO Dejesus, the man told the officers that the four people use drugs in the courtyard frequently, that he had smelled drugs, and that it looked like they had exchanged something. PO Dejesus also said the man did not single out any particular members of the group and referred to them only as a group. According to PO Gonzalez, this man specified that he saw the person in the group wearing cargo pants put marijuana in their pocket, but did not specify which pocket the marijuana was in. Furthermore, at the end of the incident, one of the officers, § 87(2)(b) did not specify which, said they had received a report that their group was smoking marijuana, which she denied.

§ 87(2)(g)

PO Dejesus said that when he got within a couple feet of the group he smelled marijuana, and so he asked § 87(2)(b) and § 87(2)(b) to stand up and then asked § 87(2)(b) to show him her hands. PO Gonzalez saw one of the males smoking something, which he realized was a cigar when they got closer, though he did not smell marijuana.

In People v. Kadan, 6 N.Y.3d 496 (2006) (encl. 1a-c), the court held that reasonable suspicion can be established by information supplied by unidentified citizens in a face to face encounter.

§ 87(2)(g)

§ 87(2)(b) it is recommended that

Allegations A and B be Unsubstantiated.

Allegation C – Abuse of Authority: PO Alexis Dejesus frisked § 87(2)(b)

It is not disputed that PO Dejesus frisked § 87(2)(b). According to § 87(2)(b) PO Dejesus approached her and asked her to stand up. He then reached to pat her leg but § 87(2)(b) backed away from PO Dejesus and told him that he could not touch her. PO Dejesus then patted § 87(2)(b) front left and right pants pockets, which respectively contained keys and her cell phone, as well as the cargo pockets on the sides of her pants legs, which were empty.

According to PO Dejesus, when he approached § 87(2)(b) she was sitting at an angle on the bench so that her left side was concealed from his view. § 87(2)(b) left her hands where they were – one was near her leg at her left side and one was between her legs, positioned so that PO Dejesus could not see her fingers. PO Dejesus asked § 87(2)(b) to see her hands and to stand up. PO Dejesus asked § 87(2)(b) to stand up three times. She complied after the third request.

§ 87(2)(b) was wearing cargo pants, and when she stood up PO Dejesus saw a big bulge in the left cargo pocket, located by her knee, and he asked her what was in the pocket. The pocket was five or six inches, the bulge was three or four inches long and rectangular or box-shaped. PO Dejesus thought it could have been a knife or possibly some other kind of weapon. PO Dejesus asked § 87(2)(b) a total of three times what was in her pocket, and she responded with statements regarding her gender and commands that PO Dejesus could not touch her. PO Dejesus noted that anytime someone does not show their hands when asked, this raises his suspicion that they are concealing something, as did the fact that § 87(2)(b) did not tell PO Dejesus what the item was.

According to PO Dejesus, he reached to § 87(2)(b) left cargo pocket and felt it. He felt that the object in the pocket was soft, which made him realize it was not a weapon but he did not ever find out what the item was. He did not take the item out of her pocket or press the issue because he knew it was not a weapon after touching it. PO Dejesus did not make physical contact with any other portion of § 87(2)(b) body, and the left cargo pocket was the only pocket that visibly contained anything. PO Dejesus' statement regarding the bulge is corroborated in the Stop, Question, and Frisk report he completed for his interaction with § 87(2)(b).

People v. DeBour, 40 N.Y.2d 210 (1976) (encl. 1h-r) states that an officer may frisk someone when he has independent reasonable suspicion that the individual has a weapon.

In People v. Gerard, 2012 NY Slip Op 2957 (App. Div. 1st Dep't 2012)(encl. 1s-t), the defendant was observed in a drug-prone and gun-prone location at approximately 2:45 a.m., with one side of his jacket appearing to be weighted down. The defendant changed directions upon noticing officers and traveled close to the building line, concealing the weighted-down side of his jacket. The defendant also spoke quickly and officers observed a bulge in his pocket. The defendant was unresponsive to the officer's questions and also tried to block the officer's hand when the officer reached to feel the bulge in his pocket. Id. The court determined that based on the combination of the aforementioned factors, the officer had the founded suspicion required to approach to ask the defendant if he was carrying a weapon; however, the officer did not have reasonable suspicion that the defendant had committed a crime, and therefore did not have the requisite level of suspicion to justify a stop and frisk of the defendant. Id.

§ 87(2)(g)
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§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C be Substantiated.**

Allegation D – Abuse of Authority: PO Alexis Dejesus frisked § 87(2)(b)

It is not disputed that PO Dejesus frisked § 87(2)(b) § 87(2)(b) alleged that PO Dejesus patted around the front and back of § 87(2)(b) waist and down his thighs. § 87(2)(b) however, heard the officers and her friends laughing with one another but was unable to hear the conversation that occurred between her friends and the officers.

PO Dejesus could not recall during his CCRB interview if he made physical contact with § 87(2)(b) but said that the Stop, Question, and Frisk Report he completed would reflect if he did, because he completed it when the incident was fresh in his mind. PO Dejesus viewed the Stop, Question, and Frisk Report he completed, and then said he frisked one of § 87(2)(b) pockets, though he could not recall which pocket he frisked. The report that PO Dejesus completed for his interaction with § 87(2)(b) noted that § 87(2)(b) had a “suspicious bulge,” next to which PO Dejesus wrote “cell phone.”

After viewing the report during his CCRB interview, PO Dejesus said he observed a square-shaped bulge of an unknown size in one of § 87(2)(b) pockets, though he could not recall which pocket it was in. PO Dejesus could not provide further details about the bulge. PO Dejesus recalled that he realized the bulge was a cell phone once he patted it, and he did not make any additional contact with § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation D be closed as Victim Unavailable.**

Allegation E – Abuse of Authority: PO Amaury Gonzalez frisked § 87(2)(b) and

§ 87(2)(b)

It is undisputed that PO Gonzalez frisked § 87(2)(b) and § 87(2)(b) PO Gonzalez admitted that he frisked § 87(2)(b) and § 87(2)(b) specifically, the front and backs of their waists, their legs, and their ankles. PO Gonzalez said that he frisked both of these individuals to make sure they did not have any weapons and to ensure that they would not cause any harm to the officers. PO Gonzalez stated that his justification for the frisk was that they were wearing baggy jeans, which could have concealed weapons. PO Gonzalez said nothing else led him to believe that they had weapons on their persons.

According to Patrol Guide Procedure 212-11 (encl. 1e-g), an officer is permitted to frisk a person for a deadly weapon if he reasonably suspects he or others are in danger of physical injury. As noted above, People v. DeBour, 40 N.Y.2d 210 (1976) (encl. 1h-r) also states that an officer may frisk someone when he has independent reasonable suspicion that the individual has a weapon.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is

recommended that **Allegation E be Substantiated.**

§ 87(2)(g), § 87(4-b) [REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
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